

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF THE BRONX

-----X Index No.:
YADULLAHI MUHAMMAD,

Plaintiff,

**VERIFIED
COMPLAINT**

**PLAINTIFF
DEMANDS A
TRIAL BY JURY**

- against -

CITY OF NEW YORK, SERGEANT GIBSON, SHIELD 5355,
POLICE OFFICER DEJUICE, POLICE OFFICER
JOHN DOE 1,

Defendants.

-----X

Plaintiff, YADULLAHI MUHAMMAD, by his attorneys GOLDBERG & ALLEN,
LLP, as and for his complaint against Defendants, alleges as follows:

PARTIES, JURISDICTION and VENUE

1. Plaintiff, YADULLAHI MUHAMMAD, is a 35 year old male and is a legal resident of the United States, residing in Bronx County.
2. Defendant, City of New York ("NYC"), is a municipality within the State of New York, which includes Bronx County. NYC maintains a police department, the New York City Police Department ("NYPD"), which is an agency of the municipality.
3. Upon information and belief, Defendant SERGEANT GIBSON, was at all relevant times a Supervising Police Officer with the NYPD believed to have been assigned to PSA-7 in the Bronx. GIBSON is being sued in both his official and individual capacity.
4. Upon information and belief, Defendant POLICE OFFICER DEJUICE,

believed to be the name of an unidentified police officer, was at all relevant times a Police Officer with the NYPD assigned to PSA-7 in the Bronx. DEJUICE is being sued in both his official and individual capacity.

5. Upon information and belief, Defendant Police Officer JOHN DOE was at all relevant times a Police Officer with the NYPD assigned to PSA-7. DOE is being sued in both his official and individual capacity.

6. This court has jurisdiction over this action as the Plaintiff resides in Bronx County and the damages sought exceed the maximum jurisdiction of all lower courts.

7. Venue is properly laid in this court as it is the resident county of the Plaintiff and all relevant events occurred in Bronx County.

8. A Notice of Claim was served upon NYC on May 3, 2017, within ninety days of March 10, 2017, the statutory date of accrual.

9. More than thirty days have passed the Notice of Claim was served and there has been no resolution of the claim.

FACTS GIVING RISE TO THE CAUSES OF ACTION

10. On March 10, 2017, at approximately 12:00 a.m., Plaintiff was walking on the sidewalk in the vicinity of Webster Avenue and 168th Street, Bronx, NY.

11. At that time, Plaintiff was not and had not been engaged in any unlawful conduct.

12. At that time, GIBSON, DEJUICE and DOE, were in an unmarked police vehicle bearing license plate HMM 5438.

13. The police vehicle came to an abrupt stop and GIBSON, DEJUICE and

DOE exited the car and approached Plaintiff.

14. Without saying anything to Plaintiff, one of the defendants, believed to be DEJUICE, placed his arm across Plaintiff's chest and spun him around.

15. When Plaintiff protested and asked what the officers were doing, GIBSON told him to "shut up," that he was being searched and that if he kept talking or moving he would "go to jail."

16. When Plaintiff continued to protest, DEJUICE also stated that if he did not shut up he would be "going to jail."

17. Plaintiff then spoke with DOE and asked how he could allow this to happen. In response he was told to shut up.

18. While Plaintiff was being restrained by GIBSON, DEJUICE conducted an unlawful and intrusive search of Plaintiff's person.

19. After unlawfully reaching into Plaintiff's pants pockets, DEJUICE pushed Plaintiff's pants down below his waist and placed his hand inside Plaintiff's underwear.

20. DEJUICE ran his hand across Plaintiff's bare buttocks, and then reached around and grabbed Plaintiff's penis and testicles.

21. At this time, a crowd had gathered, including unknown females.

22. Plaintiff moved away from DEJUICE but was grabbed by GIBSON who grabbed at Plaintiff's genitals through his pants.

23. GIBSON then pulled Plaintiff's pants down almost to his knees.

24. Plaintiff then pulled his pants back up and both GIBSON and DEJUICE continued to search him.

25. Plaintiff was able to pull his cell phone from his pocket in the hope of

videotaping the officers.

26. Upon seeing the cell phone, GIBSON grabbed the phone and threw it to the ground.

27. At about that time, a marked police car arrived at the scene and the defendants removed their hands from Plaintiff's person, returned to their vehicle and drove away.

28. Plaintiff was never told why he was stopped or searched.

29. Plaintiff suffered and continues to suffer emotional and psychological injuries as a result of this incident.

FIRST CAUSE OF ACTION
(State: Unlawful Search and Seizure)

30. Paragraphs 1 through 29 are incorporated herein pursuant to CPLR §3014 with the same force and effect as if pleaded separately.

31. The search and seizure of Plaintiff's person without lawful process or other justifiable reason constituted an unlawful search and seizure, in violation of the State constitution and established common law.

32. By reason thereof, Defendants GIBSON, DEJUICE and DOE caused Plaintiff to suffer emotional distress, mental anguish and the loss of his constitutional rights.

33. Because Defendants GIBSON, DEJUICE and DOE acted within the scope of their duties as members of the NYPD, Defendant CITY is also liable under this claim based on a theory of *respondeat superior*.

SECOND CAUSE OF ACTION
(§ 1983: Unlawful Search and Seizure)

34. Paragraphs 1 through 33 are incorporated herein pursuant to CPLR §3014 with the same force and effect as if pleaded separately.

35. The search and seizure of Plaintiff's person without lawful process or other justifiable reason constituted an unlawful search and seizure, in violation of the Fourth and Fourteenth Amendments to the United States Constitution.

36. By reason thereof, Defendants GIBSON, DEJUICE and DOE caused Plaintiff to suffer emotional distress, mental anguish and the loss of his constitutional rights.

THIRD CAUSE OF ACTION
(State: False Arrest)

37. Paragraphs 1 through 36 are incorporated herein pursuant to CPLR §3014 with the same force and effect as if pleaded separately.

38. Plaintiff was detained and arrested without his consent and without probable cause.

39. By reason thereof, Defendants GIBSON, DEJUICE and DOE caused Plaintiff to suffer emotional distress, mental anguish and the loss of his constitutional rights.

40. Because Defendants GIBSON, DEJUICE and DOE acted within the scope of their duties as members of the NYPD, Defendant CITY is also liable under this claim based on a theory of *respondeat superior*.

FOURTH CAUSE OF ACTION

(§1983: False Arrest)

41. Paragraphs 1 through 40 are incorporated herein pursuant to CPLR §3014 with the same force and effect as if pleaded separately.

42. Plaintiff was detained and arrested without his consent and without probable cause in violation of the Fourth and Fourteenth Amendments to the United States Constitution.

43. By reason thereof, Defendants GIBSON, DEJUICE and DOE caused Plaintiff to suffer emotional distress, mental anguish and the loss of his constitutional rights.

FIFTH CAUSE OF ACTION

(State: Intentional Infliction of Emotional Distress)

44. Paragraphs 1 through 43 are incorporated herein pursuant to CPLR §3014 with the same force and effect as if pleaded separately.

45. The unnecessary and intrusive manner in which the search was conducted was intentionally designed and carried out to humiliate and dehumanize Plaintiff because of his minority status.

46. By reason thereof, Defendants GIBSON, DEJUICE and DOE caused Plaintiff to suffer emotional distress, mental anguish and the loss of his constitutional rights.

47. Because Defendants GIBSON, DEJUICE and DOE acted within the scope of their duties as members of the NYPD, Defendant CITY is also liable under this claim based on a theory of *respondeat superior*.

SIXTH CAUSE OF ACTION
(§1983: Equal Protection Violation)

48. Paragraphs 1 through 47 are incorporated herein pursuant to CPLR §3014 with the same force and effect as if pleaded separately.

49. The unnecessary and intrusive manner in which the search was conducted was intentionally designed and carried out to humiliate and dehumanize Plaintiff.

50. Plaintiff was subjected to this treatment solely because of his status as a Black male in violation of the Equal Protection Clause of the Fourteenth Amendment to the United States Constitution.

51. By reason thereof, Defendants GIBSON, DEJUICE and DOE caused Plaintiff to suffer emotional distress, mental anguish and the loss of his constitutional rights.

SEVENTH CAUSE OF ACTION
(State: First Amendment Violation)

52. Paragraphs 1 through 51 are incorporated herein pursuant to CPLR §3014 with the same force and effect as if pleaded separately.

53. By grabbing Plaintiff's cell phone and throwing it to the ground, GIBSON prevented Plaintiff from exercising his First and Fourteenth Amendment rights to film the actions of the officers who acted unlawfully against him.

54. By reason thereof, Defendant GIBSON caused Plaintiff to suffer emotional distress, mental anguish and the loss of his constitutional rights.

55. Because Defendant GIBSON acted within the scope of his duties as a member of the NYPD, Defendant CITY is also liable under this claim based on a theory

of *respondeat superior*.

EIGHTH CAUSE OF ACTION
(§1983: First Amendment Violation)

56. Paragraphs 1 through 55 are incorporated herein pursuant to CPLR §3014 with the same force and effect as if pleaded separately.

57. By grabbing Plaintiff's cell phone and throwing it to the ground, GIBSON prevented Plaintiff from exercising his First Amendment right to film the actions of the officers who acted unlawfully against him.

58. By reason thereof, Defendant GIBSON caused Plaintiff to suffer emotional distress, mental anguish and the loss of his constitutional rights.

WHEREFORE, the Plaintiff demands judgment against Defendants as follows:

i) On the first cause of action, actual and punitive damages in an amount to be determined at trial;

ii) On the second cause of action, actual and punitive damages in an amount to be determined at trial;

iii) On the third cause of action, actual and punitive damages in an amount to be determined at trial;

iv) On the fourth cause of action, actual and punitive damages in an amount to be determined at trial;

v) On the fifth cause of action, actual and punitive damages in an amount to be determined at trial;

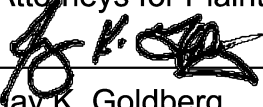
vi) On the sixth cause of action, actual and punitive damages in an amount to be determined at trial;

vii) On the seventh cause of action, actual and punitive damages in an amount to be determined at trial;

viii) On the eighth cause of action, actual and punitive damages in an amount to be determined at trial;

viii) Such other relief as the Court deems just and proper.

Dated: New York, New York
May 8, 2018

Goldberg & Allen, LLP
Attorneys for Plaintiff
By: 
Jay K. Goldberg
49 West 37th Street, 7th Floor
New York, New York 10018
(212) 766-3366
email: jkgoldberg@goldbergandallen.com

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF THE BRONX

-----X Index No.:
YADULLAHI MUHAMMAD,

VERIFICATION

Plaintiff,

- against -

CITY OF NEW YORK, SERGEANT GIBSON, SHIELD 5355,
POLICE OFFICER DEJUICE, POLICE OFFICER
JOHN DOE 1,

Defendants.

-----X
JAY K. GOLDBERG, being duly sworn, deposes and says:

I am the attorney for the plaintiff in the above entitled action. I have read the foregoing Verified Complaint, and know the contents thereof. Under penalty of perjury, I state that based upon my information and belief, I believe the allegations therein to be true and that the bases of my information are my conversations with plaintiff and my investigation of this matter. I make this affidavit pursuant to CPLR §3020(d)(3) because plaintiff is not in the county where my office is located.

Dated: New York, NY
May 9, 2018



JAY K. GOLDBERG